

SENATE BILL 2497

By Kyle

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 5; Title 6; Title 7; Title 33; Title 38; Title 52;
Title 63; Title 68 and Title 71, relative to the
bureau of immigration and customs enforcement.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 3, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Healthcare facility":

(A) Means an institution, place, building, or agency represented
and held out to the general public as ready, willing, and able to furnish
care, accommodations, facilities, and equipment for the use, in
connection with the services of a physician or dentist, of one (1) or more
nonrelated persons who may be suffering from deformity, injury, or
disease or from any other condition for which nursing, medical, or surgical
services would be appropriate for care, diagnosis, or treatment; and

(B) Does include a hospital or institution, operated by the
department of mental health and substance abuse services or the
department of disability and aging, specifically intended for use in the
diagnosis, care, and treatment of those suffering from mental illness,
intellectual disabilities, convulsive disorders, or other abnormal mental
conditions;

(2) "Physician" means a person licensed to practice medicine pursuant to
title 63, chapter 6, or osteopathic medicine pursuant to title 63, chapter 9; and

(3) "Shelter" includes:

(A) A public or private nonprofit facility that provides temporary housing and related services to persons experiencing homelessness; and

(B) A public or private nonprofit facility that provides temporary housing and related services to persons who have experienced domestic violence.

(b) The bureau of immigration and customs enforcement of the United States department of homeland security is prohibited from entering into and conducting law enforcement activities in a healthcare facility, physician's office, or a shelter located in this state.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.